

26STCV07117 26STCV07117

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-30

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Case Number: 26STCV07117 Hearing Date: July 30, 2026 Dept: 512

HEARING DATE: Thurs., July 30, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: IRP

Grace Apartments, LLC v. Khinich COMP.

FILED: 03-04-26

CASE NUMBER: 26STCV07117

TRIAL DATE: **05-12-26

NOTICE: NO

PROCEEDINGS: MOTION

TO SET ASIDE/VACATE JUDGMENT

MOVING PARTY: Defendant

Vlad Khinich

RESP. PARTY: Plaintiff IRP Grace Apartments, LLC

MOTION TO SET ASIDE/VACATE JUDGMENT

(Code Civ. Proc., §§ 86, 128, 473,

subds. (b), (d), 473.5)

TENTATIVE RULING:

Defendant Vlad

Khinich's Motion to Set Aside Judgment and Any Default, and to Quash Any Writ

of Possession/Execution is DENIED. The stay is VACATED.

Moving party is ordered to
give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC,
rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) NO

OPPOSITION: Filed
on July 20, 2026 ☐ Late ☐ None

REPLY: None
filed as of July 27, 2026 ☐
Late ☒ None

ANALYSIS:

I.

Background

On March 4, 2026, Plaintiff IRP Grace
Apartments, LLC ("Plaintiff") filed a Complaint for Unlawful Detainer against
Defendant Vlad Khinich ("Defendant"). (Compl., p. 1.)

On April 3, 2026, Defendant,
proceeding pro se, filed an Answer.

On May 12, 2026, the Court called the
Non-Jury Trial and noted there was neither appearance nor communication by or
for Defendant on this date. (5/12/26 Order.) The Court proceeded with the Court
Trial and entered judgment for Plaintiff for past rent due in the amount of
\$42,024.52 and holdover damages of \$16,038.00 for a total of \$58,062.52.
(5/12/26 Order, pp. 1-2.) The Court further ordered: "Restitution and

possession of the premises located at 732 S SPRING ST APT 920, LOS ANGELES, CA 90014 is granted for plaintiff(s) The Rental Agreement under which the property is held is hereby cancelled. Lease Agreement under which the property is held is hereby forfeited. Plaintiff is to submit a proposed judgment within 5 days.” (5/12/26 Order.)

On May 28, 2026, the Court issued Judgment in this matter and issued Notice of Entry of Judgment to Plaintiff’s counsel. (5/28/26 Order; Clerk’s Cert. of Service.)

On July 7, 2026, Defendant filed the instant Motion to Set Aside Judgment and Any Default, and to Quash Any Writ of Possession/Execution (the “Motion”).

On July 13, 2026, the Court granted Defendant’s Ex Parte Application for stay of execution of Default judgment until hearing on Defendant’s Motion to set aside. (7/13/26 Order.) The Court “orders the execution on the Judgment stayed, pending the ruling on the Motion to Set Aside/Vacate the Default Judgment scheduled for 7/30/2026.” (7/13/26 Order.)

On July 20, 2026, Plaintiff filed an Opposition to the Motion.

No Reply to the Motion was filed.

II. Procedural Issues

As an initial matter, Defendant failed to file any proof of service demonstrating the Motion and Notice of Hearing were served on Plaintiff. However, considering the opposition filed, the Court will hear the Motion on its merits.

III. Discussion

Defendant appears to move to set aside the final judgment in this matter under Code of Civil Procedure sections 473, subdivisions (b) and

(d) and 473.5. (Motion, pp. 2-3.) Defendant also appears to move to set aside the judgment on equitable grounds. (Motion, pp. 5-6.) In support of the Motion, Defendant filed a declaration stating that Defendant did not receive notice of the Summons and Complaint because Defendant does not have access to Defendant's mailroom, and no summons was posted on Defendant's door; Defendant did not receive notice of the trial because "[t]here was nothing posted on [Defendant's] door or served to [Defendant] personally. [Defendant] also could not access [Defendant's] mailbox, since the management have disabled mailroom access on [Defendant's] key fob"; Defendant did not avoid service of legal papers or do anything else that interfered with notice of the Summons and Complaint meant for Defendant; Defendant discovered there was default/judgment entered against Defendant on June 29, 2026 and filed this Motion promptly; and Defendant will suffer irreparable harm and hardship if the Motion is denied because Defendant does not have a place to live. (Motion, Khinich Decl.) Finally, Defendant also attaches a copy of a Proposed Answer in this matter to the Proposed Order for the Motion. (See Motion, Proposed Order, Exh. 1.)

In Opposition, Plaintiff states the Motion should be denied on the following grounds: Defendant filed an Answer in this matter and thus waived objections to service of the Summons and Complaint; Defendant fails to deny receipt of Plaintiff's notices filed and served in this matter; Defendant's arguments regarding setting aside a default or default judgment are inapt given that there was no default or default judgment entered in this matter; Defendant has had a "longstanding condition" of being unable to access Defendant's mailroom; and Plaintiff has given electronic notice in addition to mail notice of pertinent hearings and legal documents in this matter. (Opp.)

As a procedural matter, Defendant has not filed any proof of service demonstrating Plaintiff was served in any manner with the Motion. (See Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.)

Additionally, Defendant's Motion contains various deficiencies. California Rules of Court, rule 3.1112 requires that motions consist of a notice of hearing, the motion itself, and a memorandum in support (Cal. Rules of Court, rules 3.1112), and California Rules of Court, rule 3.1113 requires that a supporting memorandum contain "a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. Rules of Court, rules 3.1113.)

Defendant's motion fails to contain a statement of facts or clear discussion of how the authority supporting Defendant's position applies to the instant action. Further, the exhibit attached to the Motion is not formatted properly. (Cal. Rules of Court, rule 3.1110.)

Next, the Court finds Defendant filed an Answer in this matter on April 3, 2026, without a demurrer, motion to strike, or motion to quash, stay, or dismiss, and thus all challenges to service of the Summons and Complaint on grounds other than voidness have been waived since Defendant has generally appeared in this action. (See Code Civ. Proc., § 418.10, subd. (e)(3) ["Failure to make a motion under this section at the time of filing a demurrer or motion to strike constitutes a waiver of the issues of lack of personal jurisdiction, inadequacy of process, inadequacy of service of process, inconvenient forum, and delay in prosecution"].)

Further, the Court finds that any arguments raised in the Motion regarding setting aside a default or default judgment in this matter are disregarded given that no default or default judgment has been entered against Defendant in this matter. Indeed, the judgment in this matter was entered following a Court Trial. (See 5/12/26 Order; 5/28/26 Judgment.)

Turning to the Motion's arguments regarding setting aside the judgment following Court Trial in this matter, the Court finds the Motion includes legal authority but no clear discussion of the specific arguments Defendant is raising as to why the judgment following a Court Trial should be set aside. (See Motion, Khinich Decl.) However, the declaration accompanying the Motion raises arguments regarding lack of notice of the Court Trial in this matter. (See Motion, Khinich Decl.)

In Response, the Opposition provides that Defendant was given proper notice of the trial date for May 12, 2026. A notice of April 28, 2026 ruling was provided to Defendant on May 4, 2025 via UPS Next Day to Defendant at 732 South Spring Street, Apartment 920. As well, Plaintiff was provided with notice at . (Decl. Diamond, Ex. 4 and 5.) Additionally, Plaintiff provided Notice of Ruling of the May 5, 2026 case management conference notifying Defendant that the May 12, 2026 trial would proceed, also via UPS Next Day at same address and email. (Decl. Diamond, Ex. 6 and 7.) Based thereon, Plaintiff had at least a 5-day notice before Trial

in this Unlawful Detainer case where possession is still at issue. (See Code of Civ. Procedure §1179(a), 594). The Court finds that there was proper notice of the Trial.

Based on the foregoing, the Motion
is DENIED.

IV.

Conclusion
& Order

For the
foregoing reasons, Defendant Vlad Khinich's Motion to Set Aside Judgment and
Any Default, and to Quash Any Writ of Possession/Execution is DENIED. The stay
is VACATED.

Moving party is ordered to
give notice.